



File No.: EXP202312620

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 2, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 2, 2023, a complaint was received by this Agency submitted by Mr. A.A.A. (hereinafter, the complainant) against RCI BANQUE, S.A. BRANCH IN SPAIN and against S.D. IBERIAN PORTFOLIO for not having duly attended to his right to erasure.

Therefore, this Agency proceeded to instruct the corresponding files against each of these entities, with the present procedure being against RCI BANQUE, S.A. BRANCH IN SPAIN (hereinafter, the respondent).

The complainant states that the respondent has denied him the erasure of his personal data and that he had not been previously informed of the possibility of inclusion in credit information systems and of not having been required to pay.

He also points out that the files have not notified him reliably of the inclusion of his data.

He provides copies of the erasure requests addressed to the solvency files Asnef-Equifax and Experian-Badexcug, as well as the respective responses from those entities denying the requested erasure, as the data had been confirmed by the reporting entity RCI BANQUE S.A. BRANCH IN SPAIN.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated that it has no record of having received any request from the complainant to exercise data protection rights, as he directed his request for the exercise of rights exclusively against the entities Equifax – ASNEF File and Experian – BADEXCUG File.

The respondent states “(...) that the complainant has repeatedly failed to meet his payment obligations for the monthly installments owed to RCI. (...)”

RCI has made (and continues to make) multiple attempts to amicably collect its credit right and reach a solution with the complainant.

To this end, RCI has sent various reliable payment requests to the Complainant, where it expressly informs that, if payment is not made under the indicated terms, RCI would proceed, after fulfilling the legally established requirements, to communicate his data to the common credit information systems ASNEF and BADEXCUG.

Attached as Annex No. 3, and as an example, is the first reliable communication sent to the Complainant (to the address indicated in the Loan Agreement), along with the corresponding proof of delivery.”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on November 2, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days it could present the allegations it deemed appropriate.

The respondent, in summary, reiterates what has already been previously alleged, that it has no record that the complainant has exercised the right to erasure before them.

FOURTH: After examining the document submitted by the respondent, it was forwarded to the complainant, so that, within ten working days, he could submit any allegations he deemed appropriate, but no allegations were made within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

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In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not lead to the satisfaction of the complainant's claims. Consequently, on November 2, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure exclusively concerns the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD.

consider the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must provide formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims."

V

Joint Responsibility

Article 20 of the LOPDGDD, concerning credit information systems, in its paragraph 2 establishes that the entities maintaining the system and the creditors, regarding the processing of data related to their debtors, shall be considered joint controllers of the processing of the data, applying the provisions established by Article 26 of Regulation (EU) 2016/679, with the creditor entity being responsible for ensuring that the requirements for inclusion in the debt system are met, being liable for its non-existence or inaccuracy.

Article 26 of the GDPR, Joint Controllers, provides that

"1. Where two or more controllers jointly determine the purposes and means of processing, they shall be considered joint controllers. The joint controllers shall determine their respective responsibilities for compliance with the obligations under this Regulation in a transparent manner and by mutual agreement, in particular regarding the exercise of the rights of the data subject and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by Union or Member State law applicable to them. Such an arrangement may designate a contact point for data subjects.

2. The arrangement referred to in paragraph 1 shall duly reflect the functions and relationships of the joint controllers in relation to the data subjects. The essential aspects of the arrangement shall be made available to the data subject."

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3. Regardless of the terms of the agreement referred to in paragraph 1, the interested parties may exercise the rights recognized by this Regulation against, and in relation to, each of the controllers." On the other hand, the Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that "When two or more controllers jointly process data, the arrangement between the co-controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially concerning responses to access requests, shall not affect the rights of the data subjects against the controller to whom they direct their request."

VI

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the complainant requested the deletion of their data from Asnef-Equifax and from Experian-Badexcug, and that these entities responded denying such deletion as the data had been confirmed by the respondent.

However, there is no documentary evidence that allows us to consider that the complainant has approached the respondent requesting the deletion of their data.

Data protection regulations state that "When two or more controllers jointly determine the purposes and means of processing, they will be considered joint controllers of the processing" and that "(...) data subjects may exercise the rights recognized by this Regulation against, and in relation to, each of the controllers." However, this regulation does not establish the obligation that when rights are exercised only against one of the controllers, all must respond.

Therefore, since in this case the complainant did not exercise their right against the respondent, the claim must be dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DISMISS the claim made by Mr. A.A.A. against RCI BANQUE, S.A. BRANCH IN SPAIN.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to RCI BANQUE, S.A. BRANCH IN SPAIN.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the

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Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

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